

HOUSE BILL 2657

By Littleton

AN ACT to amend Chapter 121 of the Private Acts of 2004; as amended and rewritten by Chapter 84 of the Private Acts of 2014; Chapter 58 of the Private Acts of 2018; and Chapter 17 of the Private Acts of 2023; and any other acts amendatory thereto, relative to the town of Ashland City.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Section 8 of Chapter 121 of the Private Acts of 2004, as amended and rewritten by Chapter 84 of the Private Acts of 2014, and Chapter 17 of the Private Acts of 2023, and any other acts amendatory thereto, is amended by the deleting the section and substituting:

Section 8. ELECTION OF MAYOR AND COUNCILMEN.

(a) Beginning January 1, 2026, there shall be elected a Mayor and six (6) Councilmen, including two (2) Councilmen from each of the three (3) wards of the Town. The position of Mayor shall be voted on by all electors from the Town at large. The position of Councilman shall be voted on by electors in their ward. Any elector who has been a resident of the Town for at least two (2) years may be qualified as a candidate by submitting a nominating petition to the county election commission in accordance with state law.

(b) The provisions of Tennessee Code Annotated shall govern the filing of a nominating petition, the withdrawal of a candidate, and the placement of the candidate's name on the ballot.

(c) Elections shall be nonpartisan. Beginning January 1, 2026, the election of the candidate for Mayor receiving the highest number of votes for the office shall be elected, and there shall be two (2) candidates for Councilman from each of the three (3) wards of the Town to be elected receiving the highest number of votes. In the event of any tie vote for two (2) or more candidates for the office of Mayor, then the duly elected

Councilmen, by a majority vote, shall elect one (1) of the candidates for Mayor, who shall serve until the next election. If more than two (2) candidates for the office of Councilman receive the same number of votes in a ward, then the duly elected Town Council members shall, by a majority vote, elect one (1) of the candidates from the ward for Councilman. The office of Councilman shall be staggered with Councilmen serving a term of four (4) years. The office of the Mayor shall also be elected for four (4) years. Currently, the Mayor and three (3) of the Council positions are not up for election until August 2028. Three (3) vacancies on the board will be available August 2026. There shall be one (1) Councilman elected from each ward every other year to maintain the staggering of Councilmen. All elections shall be the first Thursday in August in even years.

(d) The terms of the Mayor and Councilmen shall begin at the first regularly scheduled meeting of the Council in September following their election, and they shall serve for a term of four (4) years and until their successors are elected and qualified. All elections shall be conducted in conformity with the requirements of this Charter and the election laws of the State.

SECTION 2. Section 13 of Chapter 121 of the Private Acts of 2004, as amended and rewritten by Chapter 84 of the Private Acts of 2014, and Chapter 58 of the Private Acts of 2018, and any other acts amendatory thereto, is amended by deleting the first sentence and substituting:

A vacancy shall exist if the Mayor or a Councilman resigns, dies, or moves his/her residence from their ward; is convicted of malfeasance or misfeasance in office, a felony, a violation of this Charter, the election laws of the state, or a crime involving moral turpitude; or fails to attend any meetings of the Council for a period of ninety (90) consecutive days with no extenuating circumstances.

SECTION 3. Nothing in this act shall be construed to remove any incumbent from office or abridge the term or alter the salary of any incumbent prior to the end of the term for which such elected official was selected.

SECTION 4. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the town of Ashland City. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 5. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 4.